(THOMAS, J., concurring in part and concurring in judgment). I remain of the view that we should not expand the *Cohen* collateral order doctrine beyond orders that our precedents have already held to be immediately appealable.

The *Cohen* collateral-order doctrine, which allows federal courts to exercise appellate jurisdiction over certain interlocutory orders, conflicts with Congress's authority over federal appellate jurisdiction. U. S. Const., Art. I, § 8, cl. 9; Art. III, § 1. By statute, parties generally cannot appeal before final judgment. See 28 U. S. C. § 1291; *ante,* at 443–444. Congress has established certain exceptions to that final-judgment rule that allow parties to appeal some interlocutory orders immediately. *E. g.*, § 1292(a)(1). It has also authorized this Court to create further exceptions through rulemaking. § 1292(e). *Cohen*'s collateral-order doctrine allows judges to create additional exceptions by judicial opinion, which bypasses "'Congress's designation of the rulemaking process as the way to define or refine when a district court ruling is "final" and when an interlocutory order is appealable.'" *Mohawk Industries*, 558 U. S., at 114–115 (opinion of THOMAS, J.) (quoting *Swint* v. *Chambers County Comm'n*, 514 U. S. 35, 48 (1995)). For that reason, if an interlocutory order "is not on all fours with orders we previously have held to be appealable under the collateral order doctrine," it should not be immediately appealable. *Mohawk Industries*, 558 U. S., at 115 (opinion of THOMAS, J.).

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JUSTICE ALITO, concurring in the judgment.

I agree with the Court that the defense conferred by *Yearsley* v. *W. A. Ross Constr. Co.*, 309 U. S. 18 (1940), is not an "immunity from suit." I therefore agree that an order denying a *Yearsley* defense is not a "collateral order" subject to immediate appeal. But I would not rest these conclusions solely on the fact that *Yearsley*'s applicability "turn[s] on [the defendant's] conduct's legality." *Ante,* at 445. Under the collateral-order doctrine, defendants may sometimes appeal

the denial of a defense immediately when doing so is necessary to vindicate important constitutional or public-policy interests. And this rule holds true even if the defense at issue turns on the legality of the defendant's conduct. Thus, I cannot join the opinion of the Court, but I concur in the judgment because deferring appellate review of *Yearsley* rulings until final judgment does not imperil important constitutional or public-policy interests.

## I

Since 1789, Congress has generally limited the universe of appealable orders to "final decrees and judgments." Act of Sept. 24, 1789, 1 Stat. 84. Today, this "final-judgment rule" limits the jurisdiction of federal courts of appeals. See 28 U. S. C. § 1291. The Court has long given this limit a "practical rather than a technical construction." *Cohen* v. *Beneficial Industrial Loan Corp.*, 337 U. S. 541, 546 (1949). Consistent with that approach, our decision in *Cohen* held that certain interlocutory orders—now known as collateral orders—are sufficiently "final" that a party may appeal them before litigation reaches final judgment. *Id.*, at 546–547.

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Our collateral-order doctrine establishes three criteria that an order must satisfy to qualify for immediate appeal. The order must (1) "conclusively determine [a] disputed question," (2) resolve an issue "separate from the merits of the action," and (3) be "effectively unreviewable on appeal from a final judgment." *Coopers & Lybrand* v. *Livesay*, 437 U. S. 463, 468 (1978). Whether a given order satisfies these criteria does not turn on the "facts of a particular case." *Carroll* v. *United States*, 354 U. S. 394, 405 (1957). Rather, the criteria must be satisfied for the "entire category" of orders. *Digital Equipment Corp.* v. *Desktop Direct, Inc.*, 511 U. S. 863, 868 (1994).

### A

Initially, this Court applied the "effectively unreviewable" requirement to capture orders that would become moot by

the time of final judgment. See *Cohen*, 337 U. S., at 546. For those orders, a strict application of the final-judgment rule "would practically defeat the right to any review at all." *Cobbledick* v. *United States*, 309 U. S. 323, 324–325 (1940). We first applied this reasoning in *Cohen*, which involved a district-court order that excused the plaintiffs from a litigation-bond requirement. 337 U. S., at 544–547. Applicable state law required the plaintiffs to post such a bond to secure their obligation to pay the defendant's litigation expenses and attorney's fees if their claims failed. *Cohen* held that the order excusing the plaintiffs from posting that bond was immediately appealable because it would "not be merged in final judgment." *Id.*, at 546. Regardless of who prevailed at final judgment, the question whether the plaintiffs had to post a bond would be moot. If the defendant prevailed, an appeal would not relieve it from the plaintiffs' failure to post a bond. And if the plaintiffs prevailed, the defendant would not be entitled to recover its legal costs. Thus, if orders denying requests for litigation bonds were not subject to immediate appeal, those orders would never receive appellate review.

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This conception of the collateral-order doctrine's "effectively unreviewable" requirement informed our decision in *Swift & Co. Packers* v. *Compania Colombiana Del Caribe, S. A.*, 339 U. S. 684 (1950). There, we held that the Fifth Circuit had appellate jurisdiction over a lower court's order vacating the attachment of a foreign vessel. *Id.*, at 685–689. That vessel, which the libelants attached while it passed through U. S.-controlled waters, served as security for their claims against the foreign defendant. In this respect, the vessel resembled the bond in *Cohen*. As was the case with the bond order, an immediate appeal was the only means for appellate review of the order vacating the attachment of the vessel. If the libelants in *Swift* did not prevail at final judgment, the court's vacatur of the attachment order would become moot. And if the libelants did prevail, any appellate

review of the attachment issue would be an "empty rite," as the vessel would have likely departed U. S. jurisdiction. 339 U. S., at 689.

The same reasoning explains our jurisdictional holding in *Stack* v. *Boyle*, 342 U. S. 1 (1951), which extended *Cohen* to an order denying a criminal defendant's motion to modify his pretrial bail-bond amount. 342 U. S., at 3. Once a court renders final judgment in a criminal case, the conditions governing the defendant's pretrial release become moot. By that juncture, the defendant has either been released from custody or begun a sentence of incarceration. Thus, if there were to be any appellate review of bail, it would need to occur before final judgment.

In sum, our early collateral-order cases applied the "effectively unreviewable" requirement narrowly. It captured those orders that would be unreviewable on appeal from a final judgment on account of mootness.

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B

Over the ensuing decades, the Court expanded its application of the "effectively unreviewable" requirement to include orders that undoubtedly would *not* become moot by final judgment. For example, in *Abney* v. *United States*, 431 U. S. 651 (1977), and *Helstoski* v. *Meanor*, 442 U. S. 500 (1979), the Court held that denials of defenses under the Double Jeopardy Clause and Speech or Debate Clause satisfied *Cohen* even though these protections could be "vindicated on an appeal following final judgment." *Abney*, 431 U. S., at 660. Like most criminal-law defenses, double-jeopardy and speech-or-debate issues merge into the final judgment, and a reviewing court can grant meaningful relief on these grounds by reversing a defendant's conviction. *Abney* and *Helstoski* nevertheless held that denials of relief under these two Clauses were collateral orders.

Our holdings in these cases relied on the premise that those two protections were not merely shields from criminal

liability. They were instead "guarantee[s] against being . . . put to *trial*" at all. *Abney*, 431 U. S., at 661; accord, *Helstoski*, 442 U. S., at 508 ("[T]he Speech or Debate Clause was designed to protect Congressmen . . . from the burden of defending themselves" (internal quotation marks omitted)). Thus, although a court could review these defenses on appeal from a final judgment, a court could not fully vindicate their protections at that time. By the time of final judgment, the defendant would have already been exposed to trial, thereby suffering the very harm that these defenses exist to prevent. This line of reasoning sufficed to render the orders in *Abney* and *Helstoski* "effectively unreviewable" on appeal from a final judgment. See *Abney*, 431 U. S., at 662.

This doctrinal development had important implications for our collateral-order jurisprudence. Under *Abney* and *Helstoski*'s logic, once a court designates a defense as an "immunity from suit," that defense satisfies the third collateral-order criterion. *Digital Equipment*, 511 U. S., at 870. We have likewise recognized that an order denying an immunity from suit will also satisfy the other two collateral-order requirements. See *ante*, at 447, n. 3. The denial of an immunity satisfies the first criterion because it "conclusively determine[s]" that a defendant may go to trial. *Coopers & Lybrand*, 437 U. S., at 468. See *Helstoski*, 442 U. S., at 507 ("Once a motion to dismiss is denied, there is nothing the Member can do under the [Speech or Debate] Clause . . . to prevent the trial"). And a "claim of immunity is conceptually distinct from the merits," so an order denying an immunity claim satisfies the second requirement. *Mitchell* v. *Forsyth*, 472 U. S. 511, 527 (1985). For these reasons, federal courts have consistently held that denials of an immunity are collateral orders subject to immediate appeal. See, *e. g.*, *Nixon* v. *Fitzgerald*, 457 U. S. 731, 742 (1982) (Presidential civil immunity); *Mitchell*, 472 U. S., at 530 (qualified immunity); *Puerto Rico Aqueduct and Sewer Authority* v. *Metcalf & Eddy, Inc.*, 506 U. S. 139, 143 (1993) (state and territo-

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rial sovereign immunity); *Kilburn* v. *Socialist People's Libyan Arab Jamahiriya*, 376 F. 3d 1123, 1126 (CADC 2004) (foreign sovereign immunity).

Given that the designation of a defense as an immunity is dispositive under the collateral-order doctrine, our Court has stringently guarded the designation. See *Midland Asphalt Corp.* v. *United States*, 489 U. S. 794, 801 (1989). After all, "virtually every right that could be enforced appropriately by pretrial dismissal" could be loosely described as an immunity from suit. *Digital Equipment*, 511 U. S., at 873. But treating every such right as an immunity would permit the "narrow" collateral-order doctrine to "swallow" the final-judgment rule in "virtually every case." *Id.*, at 868, 873 (internal quotation marks omitted). Our Court has therefore recognized the need to distinguish "between a right not to be tried and a right whose remedy requires the dismissal of charges." *United States* v. *Hollywood Motor Car Co.*, 458 U. S. 263, 269 (1982) (*per curiam*). And we have explained that determining whether a defense constitutes an immunity requires an evaluation of "the value of the interests" that an immediate appeal would advance. *Digital Equipment*, 511 U. S., at 878–879. Specifically, we explained in *Will* v. *Hallock*, 546 U. S. 345 (2006), that a defense "should be treated as an immunity demanding the protection of a collateral order appeal" only if wrongly allowing a suit to proceed would "imperil a substantial public interest." *Id.*, at 353; see also *Lauro Lines s.r.l.* v. *Chasser*, 490 U. S. 495, 502 (1989) (Scalia, J., concurring) ("The reason" that a right fails the third requirement of the collateral-order doctrine "is, quite simply, that the law does not deem the right *important enough*").

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Our collateral-order decisions reflect this approach. We have applied the immunity label to defenses when allowing an immediate appeal was necessary to preserve "some particular value of a high order," such as "honoring the separation of powers, preserving the efficiency of government and

the initiative of its officials, respecting a State's dignitary interests, and mitigating the government's advantage" over individual defendants in high-stakes matters. *Will*, 546 U. S., at 352–353; see, *e. g.*, *Nixon*, 457 U. S., at 742–743, 749, 758 (citing separation-of-powers concerns when allowing an appeal of an order denying Presidential immunity); *Mitchell*, 472 U. S., at 526 (explaining that the avoidance of distraction, overdeterrence, and timidity in Government service justified immediate appeals of orders denying qualified immunity); *Puerto Rico Aqueduct and Sewer Authority*, 506 U. S., at 146 (allowing an appeal of an order denying sovereign immunity to "'prevent the indignity of subjecting a State to the coercive process of judicial tribunals'"). In contrast, we have declined to designate defenses as immunities when postponing appellate review to final judgment would not imperil important interests. See, *e. g.*, *Will*, 546 U. S., at 353 (holding that the interest in shortening troublesome litigation is insufficient to treat a defense as an immunity); *Mohawk Industries, Inc.* v. *Carpenter*, 558 U. S. 100, 108–113 (2009) (acknowledging that the attorney-client privilege serves important public interests but declining to designate it as an immunity because deferring appeals would not meaningfully harm those interests).

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As these decisions illustrate, we have been cautious in recent years about expanding the collateral-order doctrine, but we have not closed the book on *Cohen*. Just two Terms ago, we designated another defense as an immunity and evaluated it in an interlocutory posture. See *Trump* v. *United States*, 603 U. S. 593, 635 (2024) (citing *Mitchell*, 472 U. S., at 524–530); 603 U. S., at 654–655 (BARRETT, J., concurring in part). The test for determining whether a defense constitutes an immunity therefore remains keyed to the interests that an immediate appeal would vindicate. If postponing review of a wrongly denied defense would undermine important constitutional or policy interests, that defense constitutes an immunity.

## II

Under this framework, the *Yearsley* doctrine is not an immunity from suit. Permitting immediate appeals of orders denying *Yearsley* defenses is not necessary to vindicate any sufficiently important constitutional or public-policy interests.

### A

As the majority correctly explains, *Yearsley* shields defendants from damages actions for conduct that federal law authorized. See *Campbell-Ewald Co.* v. *Gomez*, 577 U. S. 153, 166–167 (2016). Although this protection is important for a range of Government operations, it does not meet the threshold to be designated an immunity.

First, postponing appellate review of *Yearsley*'s applicability until final judgment would not create significant separation-of-powers problems. To be sure, the possibility that courts might impose liability for conduct that Congress authorized presents some conflict between those two branches of Government. Likewise, incorrect contractor-liability adjudications can interfere with Executive Branch operations. But these risks of error arise anytime a court misapplies a federal statute or entertains an action involving a Government contractor. Moreover, these risks pale in comparison to the separation-of-powers concerns that motivated the application of the collateral-order doctrine in other immunity contexts. See, *e. g.*, *Helstoski*, 442 U. S., at 502 (concerning a Congressman who was exposed to criminal liability based on his decision to introduce a bill in the House of Representatives).

*Yearsley* does not implicate sovereign-dignity interests, either. Although GEO Group describes *Yearsley* as conferring "derivative sovereign immunity" on contractors, Brief for Petitioner 10, this label is a poor fit. Sovereign immunity protects governments from the indignity of being subjected to a court's jurisdiction. *Puerto Rico Aqueduct and*

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*Sewer Authority*, 506 U. S., at 146. We have never described the *Yearsley* doctrine in those terms, nor have we suggested that it limits courts' jurisdiction over contractors. Cf. *Yearsley*, 309 U. S., at 19 (noting without disagreement that the lower court exercised jurisdiction over the case); *Campbell-Ewald Co.*, 577 U. S., at 165–166 (concluding that the lower court had jurisdiction over a case before determining whether *Yearsley* applied). Rather, *Yearsley* merely shields contractors from exposure for conduct that federal law authorized. I therefore agree with the majority that the *Yearsley* doctrine "derives" from the Government's lawmaking authority, not its sovereign immunity. See *ante*, at 449–451; cf. *Campbell-Ewald Co.*, 577 U. S., at 166–167; *Sloan Shipyards Corp.* v. *United States Shipping Bd. Emergency Fleet Corporation*, 258 U. S. 549, 566–567 (1922).

Last, unlike with qualified immunity, allowing immediate appeals of *Yearsley* denials is not necessary to prevent overdeterrence, timidity, and distraction in Government service. That is not to say that these concerns are entirely absent when plaintiffs bring damages actions against Government contractors. As this Court recognized in *Filarsky* v. *Delia*, 566 U. S. 377 (2012), the public has an interest in preventing overdeterrence, timidity, and distraction in Government functions no matter the "nature of [the defendant's] particular relationship with the government." *Id.*, at 389–392. But our doctrine already accommodates these concerns by allowing contractors to invoke qualified immunity. *Ibid.*; *Campbell-Ewald Co.*, 577 U. S., at 167. Indeed, qualified immunity provides a greater protection to contractors than *Yearsley* does. Whereas *Yearsley* shields only those contractors who act within the bounds of their legal authorization, qualified immunity protects "all but the plainly incompetent or those who knowingly violate the law." *Malley* v. *Briggs*, 475 U. S. 335, 341 (1986). And as the defense's name indicates, contractors may immediately appeal denials of qualified immunity. *Mitchell*, 472 U. S., at 530. Because

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qualified immunity already vindicates the public interest in avoiding overdeterrence, timidity, and distraction among contractors, there is no overriding interest in also allowing immediate appeals of orders denying *Yearsley*'s more modest protections.* Cf. *Mohawk Industries, Inc.*, 558 U. S., at 109–112 (declining to treat the attorney-client privilege as an immunity because other "established mechanisms for appellate review" were available).

In sum, allowing immediate appeals of orders denying *Yearsley* defenses is not necessary to vindicate any important constitutional or public-policy interests. Accordingly, the *Yearsley* doctrine is not an immunity from suit. And because *Yearsley* issues can be reviewed on an appeal from a final judgment, these orders do not otherwise satisfy the third collateral-order requirement.

B

Rather than conducting the public-interest inquiry that our immunity case law employs, the majority trains most of its analysis on a single question: Whether the *Yearsley* doctrine "turn[s] on [the defendant's] conduct's legality." *Ante*,

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*Although Government contractors may generally assert qualified immunity, this Court has held that "private prison guards" may not in Rev. Stat. § 1979, 42 U. S. C. § 1983 cases. See *Richardson* v. *McKnight*, 521 U. S. 399, 412 (1997). Separately, this Court has not decided whether corporate-contractor defendants like GEO Group may invoke qualified immunity. But see *United Pet Supply, Inc.* v. *Chattanooga*, 768 F. 3d 464, 484, n. 3 (CA6 2014) (noting that the Sixth Circuit has entertained corporate defendants' assertions of qualified immunity). Perhaps the public interest would be well-served by allowing appeals of orders denying *Yearsley* defenses to those defendants who cannot invoke qualified immunity. Even so, our doctrine requires us to decide whether *Yearsley* denials are collateral orders as a category, not "as applied" to particular defendants. If, however, most defendants who invoke *Yearsley* could not invoke qualified immunity, the collateral-order analysis might be different. For example, if corporate contractors could never invoke qualified immunity, then there would be a stronger argument that denials of *Yearsley* defenses should be immediately appealable.

at 445. Because the *Yearsley* doctrine does, the majority concludes that it fails to satisfy the third collateral-order requirement. That analysis is oversimplified.

Of course, whether a defense turns on the legality of a defendant's conduct can be relevant to the collateral-order analysis. For example, the degree of overlap between a defense and a defendant's conduct can bear on whether an order is "'separate from the merits of the action.'" *Ante*, at 447, n. 3; but see *Mitchell*, 472 U. S., at 527. It is also true that certain "immunities from suit" are jurisdictional bars that shield a defendant from judicial process regardless of whether it acted lawfully. See, *e. g.*, 28 U. S. C. § 1604 (codifying foreign sovereign immunity as a jurisdictional bar); *Seminole Tribe of Fla.* v. *Florida*, 517 U. S. 44, 72–73 (1996) (treating state sovereign immunity as a jurisdictional limit).

Nonetheless, the majority's rule cannot fully explain our collateral-order case law. For instance, qualified immunity is an immunity from suit, yet its applicability can and often does turn on whether a defendant violated the law. See *District of Columbia* v. *Wesby*, 583 U. S. 48, 62–63 (2018). Indeed, before this Court decided *Pearson* v. *Callahan*, 555 U. S. 223 (2009), a court evaluating a qualified-immunity defense *had* to resolve the legality of the defendant's alleged conduct. *Id.*, at 232; see, *e. g.*, *Scott* v. *Harris*, 550 U. S. 372, 377 (2007). We nevertheless treated (and continue to treat) denials of qualified immunity as collateral orders.

On the other side of the ledger, we have held that several defenses are not immunities even though they do not turn on the legality of the defendant's conduct. For instance, this Court has held that neither the Federal Tort Claims Act's judgment bar nor a criminal defendant's right against vindictive prosecution qualifies as an immunity from suit, even though neither defense concerns a defendant's challenged conduct. See *Will*, 546 U. S., at 353–355; *Hollywood Motor Car Co.*, 458 U. S., at 267–270; see also *Digital Equipment Corp.*, 511 U. S., at 884 (holding that a lower court's refusal

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to enforce a settlement agreement against a plaintiff's claims was not a collateral order).

In short, although the majority's focus—whether a defense turns on the legality of the defendant's conduct—can be relevant in the collateral-order analysis, it is not dispositive of whether a defense constitutes an immunity.

* * *

Because postponing appellate review of *Yearsley* issues until final judgment would not imperil important constitutional or public-policy interests, I concur in the judgment of the Court.

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